



File No.: EXP202311764

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On August 4, 2023, a complaint was filed with the Spanish Agency for the Protection of Data for a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A. or the complained party).

The facts brought to the attention of this authority:

The complaining party states that the complained party, a neighbor in the same building, has installed a surveillance camera in the bathroom window of their home, facing outward, which is capable of capturing images of the complaining party's home, including the interior of the dwelling.

They provide four images taken from the interior of the complaining party's home, in which, through a window of this dwelling, the other window of the adjoining dwelling can be seen, both located in what appears to be an interior courtyard of the apartment block. In that window of the adjoining dwelling, on its exterior, a surveillance camera facing outward can be seen, capable of capturing images of neighboring homes.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to A.A.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via postal service, was notified to the complained party on October 3, 2023, as evidenced by the acknowledgment of receipt in the file, without any response being received by this AEPD.

For that reason, this forwarding was reiterated on November 22, 2023, without the complained party attending to the procedure in this case either.

In these forwarding letters of the complaint, information was requested from the complained party regarding the characteristics of the installed surveillance system, with the provision of photographs of all devices and images showing the field of vision captured by the cameras.

Additionally, in the event that such cameras were fictitious, not operational, or had been removed, a form called "Responsible Declaration Model" was provided to be completed, specifying the corresponding situation, noting that the indicated cameras do not allow for the viewing or recording of images and their commitment not to make future use of these that would allow for the processing of personal data.

THIRD: On November 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On February 7, 2025, the Presidency of the Spanish Agency for the Protection of Data agreed to initiate a warning procedure against the complained party for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

This agreement warned that the alleged infringement, if confirmed, could lead to the imposition of measures, in accordance with the provisions of the aforementioned Article 64.3 of the LOPDGDD.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 10/02/2025, as evidenced by the acknowledgment of receipt in the file.

SIXTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

In light of all that has transpired, the Spanish Agency for the Protection of Data considers the following facts to be proven in the present proceeding,

PROVEN FACTS

FIRST: The complaining and complained parties occupy adjacent homes in the same building.

SECOND: The complained party has installed a surveillance camera in the bathroom window of their home, open to an interior courtyard of the apartment block. This camera is facing outward, capable of capturing images of the complaining party's home, including its interior.

LEGAL GROUNDS

I

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Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Article 4.7 of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law."

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Images captured by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since A.A.A. collects personal data among other processing activities by having a video surveillance system that can capture images of natural persons.

A.A.A. carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity under Article 4.7 of the GDPR.

It is therefore pertinent to analyze whether the processing of personal data carried out by A.A.A.

through the video surveillance system complies with the provisions of the GDPR.

III

Obligations Regarding Video Surveillance

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

However, the processing of images through a video surveillance system must comply with the following specific requirements to be in accordance with current regulations (Article 22 of the LOPDGDD):

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by less intrusive means for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, in accordance with Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, a "layered information" system is provided for video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

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The information of the second layer must be available in a place easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the other elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. In the event that the monitored space has several entrances, the distinguishing mark of the monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to clarify the context of the surveillance.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of images from cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

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The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the “Guides and tools” section).

IV

Unfulfilled obligation: possible infringement of Article 5.1 c) of the GDPR (Data minimization principle)
Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera systems or video cameras for the purpose of preserving the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

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That is to say, the cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to

preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

If there is an easement of passage over a property or land, the processing of data would not be excluded from the scope of data protection regulations, given that, as it is an area subject to an easement of passage, it is accessible not only by the owner of the dwelling and the persons authorized by them but also by third parties who are the holders of the dominant estate of the easement.

Furthermore, the installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby who freely transit the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

In summary, the installation of video surveillance systems in family homes must comply with data protection regulations if the cameras are installed outside and can capture images of individuals at entrances, facades, or party walls or within the interior of their homes.

In this case, A.A.A. has a video surveillance camera on the facade of their home, located at one of their windows, facing outward. Given its orientation, this camera can capture images of the interior of neighboring homes, making it capable of capturing images of individuals.

Therefore, in accordance with the available evidence, it is considered that the known facts constitute an infringement attributable to A.A.A. for violation of Article 5.1.c) of the GDPR as transcribed above.

V

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purpose of the limitation period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Proposal for warning

In the event that an infringement of the provisions of the GDPR occurs, among the corrective powers available to the Spanish Agency for Data Protection, as the supervisory authority, Article 58.2 of said Regulation provides for the following:

"2 Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

Article 64.3 of the LOPDGDD establishes that the AEPD, after hearing the controller, may issue a warning.

In this case, given the nature of the facts and circumstances presented in the preceding Legal Grounds, it is deemed appropriate to issue a warning to A.A.A. for the infringement of the aforementioned article.

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Corrective Measures

Once the infringement has been confirmed, it is necessary to establish the corrective measures that A.A.A. must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.c) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Thus, it is agreed to require A.A.A. to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures must be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the available evidence, A.A.A. is required to adopt the following measures within one month from the date of the enforceability of this resolution:

1. Provide evidence of having reoriented the camera to avoid capturing third-party property. If the reorientation of the camera is not sufficient to prevent the capture of third-party property, it must either be removed or privacy masks must be established to prevent the capture of external spaces. It is warned that failure to comply with this order to adopt measures may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes firm and enforceable, to adopt the necessary measures to align its actions with personal data protection regulations, to the extent expressed in the Legal Ground of this resolution; and to provide evidence to this Agency, within the same timeframe, of the measures adopted.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of

Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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